

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Harold Rodriguez	Team: Team # 5	CCRB Case #: 201410512	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 10/15/2014 10:00 AM	Location of Incident: 2452 Grand Concourse	18 Mo. SOL 4/15/2016	Precinct: 46
Date/Time CV Reported Wed, 10/15/2014 10:20 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 10/15/2014 10:20 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Edward Lawyerr	03952	949201	046 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Edward Lawyerr	Abuse: PO Edward Lawyerr refused to provide his name and/or shield number to § 87(2)(b)	A . Unsubstantiated

Case Summary

On October 15, 2014, at approximately 8:00 a.m., PO Edward Lawyerr of the 46th Precinct pulled over § 87(2)(b) at the intersection of East 187th Street and Grand Concourse in the Bronx. § 87(2)(b) was issued a summons for using a portable device while driving (complaint Encl. 3A-B, summons Encl. 4C-D). § 87(2)(b) asked PO Lawyerr for his name and shield number and he told him it was on the summons. § 87(2)(b) then noticed the name was illegible on the summons (**Allegation A**).

Mediation, Civil and Criminal Conviction Histories

This case was eligible for mediation and § 87(2)(b) rejected. § 87(2)(b) has not filed a Notice of Claim with the City of New York as of November 20, 2014 with regard to this incident. § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint.
- PO Lawyerr has been a member of the NYPD for four years, has had eight previous CCRB allegations involving five cases with no substantiated allegations. § 87(2)(g) (Encl. 1A-2B).

Findings and Recommendations

Allegations Not Pleaded

- § 87(2)(g)

Explanation of Subject Officer Identification

PO Lawyerr was identified by his tax number on the summons that he gave § 87(2)(b)

Allegation A: PO Edward Lawyerr refused to provide his name and/or shield number to

§ 87(2)(b)

§ 87(2)(b) was interviewed on October 22, 2014 (Encl. 4A-B). § 87(2)(b) alleged that on October 15, 2014, he was pulled over by PO Edward Lawyerr of the 46th Precinct for talking on his cellphone. Since he disagreed with the summons he received, he asked PO Lawyerr for his name and shield number so he can file a complaint later on. PO Lawyerr told him that his information was on the summons. § 87(2)(b) managed to write down PO Lawyerr's shield number by looking at his badge before he turned around to return to the police vehicle.

PO Lawyerr was interviewed on November 17, 2014 (Encl. 6A-B). PO Lawyerr stated that he was stationed at the corner of East 188th Street and Grand Concourse in the Bronx and saw § 87(2)(b) texting and driving while his vehicle was in motion. PO Lawyerr pulled over § 87(2)(b) and immediately introduced himself by stating his name, shield, command and the reason for § 87(2)(b) being pulled over. He stated that § 87(2)(b) never asked for his name and/or shield number during the incident and his badge and nameplate were fully visible for § 87(2)(b) to see at all times. He also did not refuse to provide § 87(2)(b) with his name and/or shield number at any time.

It is therefore recommended that **Allegation A** be unsubstantiated.

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date